

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: July 30, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER DENYING WITHOUT PREJUDICE MOTION FOR EXTENSION OF TIME TO RESPOND TO
CLAIMANT’S MOTION FOR SUMMARY JUDGMENT**

On July 29, 2025, Respondent filed a Motion for Extension of Time to Respond to Claimant’s¹ Motion for Summary Judgment (“Motion MSJ Extension”). Respondent asks to extend the time to respond to Complainant’s Motion for Summary Judgment from July 31, 2025, to August 5, 2025. Also on July 29, 2025, Complainant filed Complainant’s Response in Opposition to Respondent’s Motion for Extension of Time to Respond to Claimant’s Motion for Summary Judgment (“Motion MSJ Extension Response”).

Commission Rule 502.102(a) requires a party to file a request for extending a deadline at least seven days before the deadline, and any request made fewer than seven days before the deadline “may be considered where reasonable grounds are found for the failure to meet this requirement.” (46 C.F.R. § 502.102(a)). While Respondent’s counsel “apologizes” for the delay in filing the Motion MSJ Extension, Respondent provides no reason for the delay. Therefore, the Motion MSJ Extension is **DENIED** without prejudice.

Going forward, the parties are encouraged to agree to short and reasonable extension requests. (*See Gaudet v. Howard L. Nations, APC*, CIVIL ACTION NO. 19-10356-WBV-JVM, 2021 WL 2446203, at *1 (E.D. La. Jun. 15, 2021) (“In doing so, the Court reminded counsel of their professional obligations toward each other and the Court, and admonished counsel about not extending professional courtesies to each other.”)). Here, Respondent requests additional time because counsel for Respondent recently made an appearance. (Motion MSJ Extension, at 1). This is a reasonable request of less than a week. Although Complainant objects to the request, Complainant does not assert how it would be prejudiced by agreeing to this request. I understand Complainant alleged in its Complaint that Respondent was holding Complainant’s cargo improperly. (*See generally* Verified Complaint). More recently, however, Respondent represented that Complainant is now in possession of the cargo (*see* Order Denying Motion for

¹ In general, the term “complainant” is used to refer to the party bringing a private complaint before the Commission, as opposed to “claimant.” (*See, e.g.*, 46 C.F.R. § 502.62).

Interim Relief to Prevent Spoliation and Intimidation (the “July 22 Order”)), and Complainant has not rebutted that representation. Accordingly, it appears that the remaining issues are liability and reparations. Given the current posture of this case, it is unclear how agreeing to an additional six days to respond to a dispositive motion would hurt Complainant.² (*See Gaudet*, 2021 WL 2446203, at *1 (“The Court also mentioned that it was troubled to hear an objection from Defendants when they could not articulate any prejudice or hardship caused by the requested continuance.”)).

For these reasons, the Motion MSJ Extension is **DENIED** without prejudice.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
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Richard Ambrow
Administrative Law Judge

² The Motion for Summary Judgment will not resolve this matter because it makes no arguments, and presents no evidence, regarding reparations. (*See generally* Motion for Summary Judgment).